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From Backwaters to Battlegrounds

IN A 2011 PHONE CALL with a radio host impersonating David Koch, Wisconsin governor Scott Walker explained that he was part of a national movement of conservative governors who “got elected to do something big” across their states (Newell 2011). Democratic governors like Jerry Brown of California and Jay Inslee of Washington similarly called for coordinated efforts by blue state governments to oppose initiatives by the Trump administration and Republican Congress. If their rhetoric is to be believed, politicians at the state level see themselves engaged in major struggles over the direction of public policy in the United States.

But this contentious rhetoric is at odds with how political scientists describe the policymaking role of state governments. The governors are pitching themselves as central to American politics and public policy. Political scientists, on the other hand, tend to suggest that state governments are actually relatively marginal players. There is a long tradition of seeing state governments as “the runt in the American governmental litter” (Allen 1949; Sharkansky 1968; Teaford 2002, 2), with policy agendas that are highly constrained by economic realities (Peterson 1981) and low legislative professionalism (Kousser 2005). Recent research largely continues this characterization. While some studies report important changes in state policy in the polarized era (e.g., Kousser 2002; Hertel-Fernandez and Skocpol 2016; Hertel-Fernandez 2016), the most comprehensive recent studies in this area conclude that state policy outcomes have been generally “stable” over the years (Caughey and Warshaw 2016, 900) and that party control of government still plays only a “modest” role in policy differences between states (Caughey, Warshaw, and Xu 2017, 1342).

So, are state-level politicians overstating their centrality to policymaking in the United States? Or is political science due for an update? In this chapter, I argue the latter. The nationalization of the Democratic and Republican parties

led to gridlock in Congress—but in the states, it led to a resurgence of major policymaking.

I first present evidence that state governments have moved from the margins to the center of American politics and policymaking since the 1970s. Over the past generation, the federal government polarized and produced fewer major policies that standardize laws across states (Binder 2003; Hacker and Pierson 2010), and the judiciary became an increasingly “state friendly arena” (Waltenburg and Swinford 1999, 2). Faced with federal gridlock, policy-demanding groups, activists, and social movements on both the right and the left turned to the states to pursue their policy priorities (e.g., Baumgartner and Jones 2010). As parts of two national partisan networks, these policy demanders were able to rapidly shift policymaking resources to states where their party took control and make major changes in short order.

The policy consequences of this shift have been profound. I use data on 135 major state policies to investigate two particular policy dynamics in the fifty states: increased *policy variation* (the substantive differences between states) and *policy polarization* (the relationship between party control and policy outcomes). Recent decades have seen a strengthening relationship between an individual’s state of residence and her legal right to obtain an abortion, own a firearm, join a labor union, or use drugs, as well as her tax burden, the strictness of her state’s environmental regulatory regime, and the generosity of its welfare state.¹ As it was before the New Deal and civil rights eras, the state level is once again central to Americans’ relationship to government.

Scholars have underemphasized the importance of increased policy variation and polarization in the states, and this has led to the underestimation of the role of the states in American governance. But just as important, they have neglected a key area where state policy is *not* very diverse and is remarkably *unpolarized*: policing and criminal justice.

These exceptions have much to teach us about American democracy. Indeed, my analysis uncovers that—unlike 14 of 16 policy areas as wide-ranging as environmental regulation, LGBT rights, and health policy—Democratic and Republican states both implemented similar “tough on crime” laws that led to mass incarceration and were equally unwilling or unable to rein in the racial authoritarianism of the police forces under their command. This exceptionalism of policing and criminal justice in defying the polarization pattern highlights a broader lack of attention by political scientists to the role of

1. Journalists have been pointing to these trends as well (e.g., Fehrman 2016).

policing in modern racial authoritarianism. As Vesla Weaver and Gwen Prowse (2020, 1177) write, “Despite racial authoritarianism’s glaring presence in experiential accounts of U.S. democracy, it has been hiding in plain view in the field of political science. In a field responsible for constructing metrics on democratic stability and political behavior, our failure to theorize racial authoritarianism has had consequences for how U.S. democracy is conceived by the public and policy-makers.” This failure has also led scholars and political observers to underestimate the role of state governments, which have constitutional authority over nearly all U.S. law enforcement agencies.

The state level has returned as a critically important part of American federalism and as deeply consequential for the lives of Americans. The resurgence of state policy over the past generation can be seen in the increasingly varied and polarized policymaking in areas like abortion and labor policy, as well as in the bipartisan buildup of authoritarian policing and mass incarceration. Ironically, the rise of nationally coordinated and polarized parties has led to a shifting of policymaking down to the state level.

In the rest of this chapter, I first review literature on the role of state governments within American federalism. Next, I develop my argument about how the nationalization and polarization of the Democratic and Republican parties incentivizes groups to shift their political resources to the state level. I then look empirically at the resulting state policy resurgence, estimating policy variation between states and how this variation is driven by party control of state government. Finally, I investigate the areas of exception, where state policy is not polarized by party—education and especially criminal justice policy—and offer potential explanations for these patterns.

The Minimalist View of States

Three decades after Daniel Elazar (1990) predicted resurgent states in an emerging “neodualist” era of federalism, observers point to intensifying battles over public policy at the state level. However, there has been little empirical investigation of systemic policy changes in the states over time. Though scholars are now less likely to call them the “backwaters” of American politics (Winston 2002, 106), scholars have tended to take a *minimalist view* of state policymaking.

John Kincaid (1990, 144), former director of the U.S. Advisory Commission on Intergovernmental Relations and a prominent scholar of federalism, describes a twentieth century in which the role of states shrank and U.S. federalism became “more adaptable to policy preferences defined increasingly by

the national government”—where the federal government moved from “senior partner” to “commanding partner” (see also Posner 2007; Zimmerman 2009).² By 1975, even the predominant federalism scholar William Riker (1975, 143) suggested that the existence of lower levels of government “makes no particular difference for public policy.”

Additional research lends credence to the minimalist view by highlighting the constraints that face lower levels of government in federalism. Fiscal federalism suggests that the threat of exit from businesses and wealthy residents exerts downward pressure on taxation, redistribution, and regulation (Peterson 1981; Oates 1999), which reduces the potential for variation across states.³ Fiscal federalism implies that state governments have little policy discretion compared to the federal government: they face a greater threat of exit, and with no ability to manipulate a floating currency, they face economic forces beyond their control and greater pressure to balance budgets.⁴ State legislators also lack the policymaking resources of members of Congress (Kousser 2005). Lower salaries increase the incentive to spend time earning money outside of their political offices, and fewer staff limit the ability to research and draft legislation. Even if state legislators face equivalent pressures from voters and interest groups as members of Congress, we would expect those in state capitals to be less productive because of these resource constraints.

Despite these constraints, however, roll-call voting in state legislatures has polarized in recent years (Shor and McCarty 2011). Whether the prior cause of polarization stems from voters, interest groups, or politicians themselves, greater polarization implies greater distance between the policy preferences of Democrats and Republicans,⁵ and thus increasing polarization of policy outcomes in the states. But most prominent studies of state policy outcomes still tend to favor the minimalist view (e.g., Dynes and Holbein 2020). While

2. A few conservative commentators counter the minimalist view, arguing, for instance, that liberal state governments like that of the “failed state of California” are too active in attempts “to regulate the internet, to tax corporations on profits earned in foreign jurisdictions, and to impose sales tax collection obligations on internet sellers domiciled elsewhere” (Greve 2011, 6).

3. However, some research challenges the prediction of a “race to the bottom” in the states (Volden 2002; Konisky 2007).

4. Researchers highlight the inability to devalue a currency as a major barrier to fiscal policy in lower-income Eurozone countries (e.g., Krugman 2013).

5. This is true at least to the extent this polarization is ideological, as well as to the extent that non-ideological partisan brinksmanship incentivizes ideologically distinct policy agendas (Lee 2009).

“Democrats and Republicans may disagree consistently and even violently,” Devin Caughey, Christopher Warshaw, and Yiqing Xu (2017, 1356) conclude that “the actual policy consequences of these disagreements are far less dramatic.” The increasingly partisan and ideologically consistent rhetoric of Democratic and Republican governors and state legislators is just that—talk, with little consequence for public policy (for other examples of minimal effects of party control, see Garand 1988; Erikson, Wright, and McIver 1993; Jacobs and Carmichael 2002; Konisky 2007). This chapter’s theory and empirical analysis challenge this line of research.

How National Polarization Affects State Policy

Political scientists have published countless books and articles about the expanding polarization between the national Democratic and Republican parties in recent decades and its consequences for elections, legislative voting, and national policy. But there hasn’t been much attention on how nationally polarized parties are filtered through the institutions of American federalism. This is in part because political science research has tended to see the states as fifty separate polities, where policy changes occur as a result of political inputs within each of these separate political systems. In this perspective, an increase in state policy variation and polarization could be the result of partisan sorting and polarization of state electorates.

But when we widen our perspective to study American federalism as a broader system with feedbacks between states and across levels of government (Karch and Rose 2019), we can begin to theorize why the state level might be returning as the central locus of major policymaking and policy conflict in recent decades. In addition to a direct effect of polarization (e.g., Shor and McCarty 2011), I argue that the development of nationally coordinated and polarized parties *interacts with American federalism* to shift policymaking down to lower levels of government.⁶ Polarization and divided government at the *national* level move policy action down to the state level, where one party is more likely to have unified control of government. Because the party networks

6. The parties were nationally polarized in earlier eras of American politics, such as during the late nineteenth century when national polarization over slavery resulted in the Civil War. The war led to greater centralization of governance at the national level until the end of Reconstruction, when expansion of Jim Crow once again widened the variation across states in areas of civil rights and racial equity.

are *nationally coordinated*, policy-demanding groups can shift political resources to the right states at the right time to implement their agendas.

Gridlock at the Federal Level

Polarization and divided government have caused a slowdown of national policy creation (Binder 2003), but federalism may serve as a “safety valve” for policy demanders who are stymied at the federal level. An expansion of national policy from the New Deal through the early 1970s “centralized” governance and standardized the welfare state and civil rights law across the states (Melnick 1996; Mettler 1998; Campbell 2014). Although New Deal programs allowed states to exclude many Black Americans from benefits (Weir 2005; Katznelson 2013), landmark policies like the Social Security Act of 1935 and the Civil Rights Act of 1964 decreased interstate policy variation by establishing or raising legal and economic baselines.⁷

However, in the years since the 1970s, polarization has increased in Congress and divided federal government has become a more frequent occurrence (McCarty, Poole, and Rosenthal 2006). This has led to policy gridlock (Binder 1999) and “drift” (Hacker 2004)—and higher costs of national policy change for policy demanders. Faced with federal gridlock, policy demanders turn to states to implement their agendas. Frustrated climate activists may turn their hopes to the states (Rabe 2004), as might organized labor (Meyerson 2014), LGBT rights activists (Lax and Phillips 2009), or antistatist and business interests (Skocpol and Hertel-Fernandez 2016). Federal gridlock also means that these policy-demanding groups can be more confident than in earlier periods that their state policy victories will not soon be reversed by federal legislation or court rulings.

Venue Shifting to the State Level

One reason the state governments can serve as a safety valve for policy demanders is because of their partisan diversity. As the parties polarize, policy demanders are incentivized to ally themselves with one side (Bawn et al. 2012).

7. This process of centralization continued in the welfare and regulatory buildup of the 1960s and 1970s. Landmark federal policies that decreased state variation during this era include the Social Security Amendments of 1965 and 1972, the Gun Control Act of 1968, the National Environmental Policy Act of 1969, and the Clean Air Act of 1970.

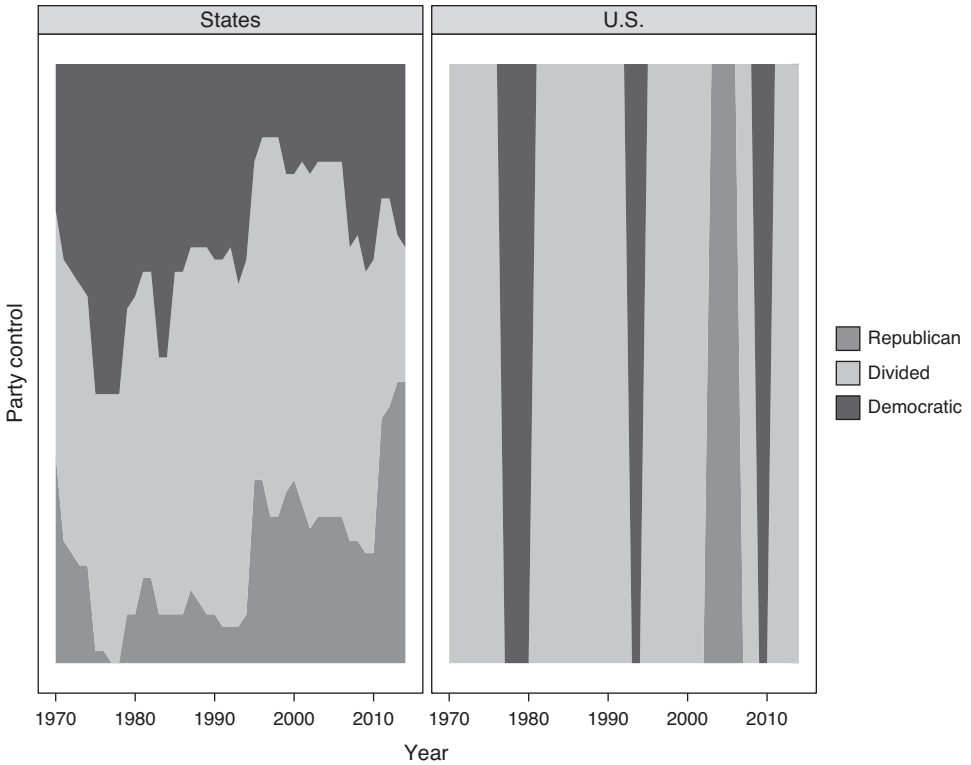


FIGURE 3.1. Partisan Control at the State and National Levels.

Fortunately for them, there will (virtually) always be at least one state government controlled by their aligned party.⁸ Moreover, the federal government has been more likely to be under divided party control than state governments in recent decades. Between 1970 and 2014, the U.S. House, Senate, and presidency have only been under unified party control about 27 percent of the time (12 of 45 years), whereas the average state has been under unified control about 50 percent of the time. Regardless of whether this difference in the likelihood of unified party control is due to federalist institutions or historical happenstance, we would expect relatively less gridlock in the states as polarization increases and, in turn, a relative growth in the role of state governments as major policymakers.⁹

8. There were no unified Republican states in the year after the Watergate scandal.

9. Constantelos's (2010) study of interest groups based in Michigan and Ontario uncovers evidence that groups select venues based on party control.

In the rarer moments when important federal policy does pass, polarization and divided government increase incentives for members of Congress to delegate authority to the states (e.g., Mooney 2000; Feeley and Rubin 2009; Chatfield and Rocco 2014). A legislator who would ideally implement his or her preferred policy across all fifty states may accept a decentralized policy as a second-best option if it moves the average outcome (such as the policy regime for the average state or average individual) toward his or her ideal. Moreover, the district-based electoral connection in Congress can improve the relative appeal of the second-best option because “representatives know that when they delegate to state and local agents, policy for *their* constituents will be set by representatives elected by those same constituents” (Chatfield and Rocco 2014, 4). Indeed, the rise of polarization in Congress has coincided with what scholars call a “devolution revolution” (e.g., Soss et al. 2001; Grogan and Rigby 2008; Kelly and Witko 2012). In a similar fashion, the federal judiciary has undergone a “federalism revolution” in which the courts are an increasingly “state friendly arena” (Whittington 2001; Waltenburg and Swinford 1999, 2) precisely during an era of increasingly partisan and narrow decisions (Baum 2015).

But this isn’t just the story of the federal government becoming more permissive of decentralization. As chapters 4 and 5 will describe, it is about policy-demanding groups investing in state-level politics. These groups—ideological and issue activists, business lobbies, and wealthy individuals—shifted their attention and political resources toward the states. They and their allies in state governments innovated new ways to use the powers of the state level within American federalism, whether this meant passing major state legislation, marshaling state attorneys general against opponents in the federal government (Merriman 2019), or finding new ways to suppress the vote.

Polarization and divided government at the national level led policy-demanding groups to shift their sights to the state level. The next sections detail four consequences for public policy over the past generation. First, fiscal capacity moved from the national to the state level; as the federal government stalled and the states took up the slack, the states began to occupy a greater share of American taxation and public spending. Second, policy became increasingly varied across states; the average American’s policy regime became increasingly tied to their state of residence. Third, party control of state government became the strongest predictor of a state’s policy outcomes, with the national Democratic and Republican parties implementing distinct policies. Finally, states expanded their capacity to police and incarcerate their residents, rapidly increasing the U.S. prison population—but, unlike

other policy areas, this rise of authoritarian policing and mass incarceration was a bipartisan affair.

Fiscal Activity Moves to the States

One way we can observe state governments transforming from “backwaters” to central players in American federalism is in the balance of fiscal activity between the state and national level. From the 1930s through the 1970s, Congress passed a number of transformational national economic policies. The Social Security Act of 1935 and its expansions in subsequent decades created a system of old age and disability insurance, massively reducing senior citizen poverty. Medicare and Medicaid provided public health insurance for the elderly and low-income families. Laws like the Glass-Steagall Act of 1933 and the Clean Air Act of 1970 funded federal agencies to regulate the financial industry and large polluters. To finance these initiatives, the federal government raised taxes, especially on the wealthy, who famously faced a top marginal income tax rate of 91 percent through the Eisenhower presidency. All of these policies helped narrow the wide economic differences between the states and centralized fiscal activity at the national level.

But by the 1980s, these trends reversed. The federal government not only slowed its production of major economic policies but also dramatically cut taxes and domestic spending. The federal government further devolved economic policy authority to the states in areas like welfare, which converted from the national Aid to Families with Dependent Children (AFDC) to the state-level Temporary Aid for Needy Families (TANF) during the Clinton presidency.

As the national government pulled back, states, particularly more liberal states controlled by Democrats, expanded their fiscal capacity. States like California and Oregon raised taxes on high earners to help finance social programs that the federal government appeared uninterested in providing. Another illustrative example is the provision of public benefits for immigrants. The 1996 welfare reform made legal immigrants ineligible for federal benefits for the first five years of residency. In response, some states moved to cover these new immigrants in their Medicaid, TANF, and State Children’s Health Insurance Program (SCHIP) policies using only state funding (Hero and Preuhs 2007), again increasing the relative role of the states.

In figure 3.2, I plot total state government spending, employment, and average state tax rates (covering capital gains, corporations, and income) as a

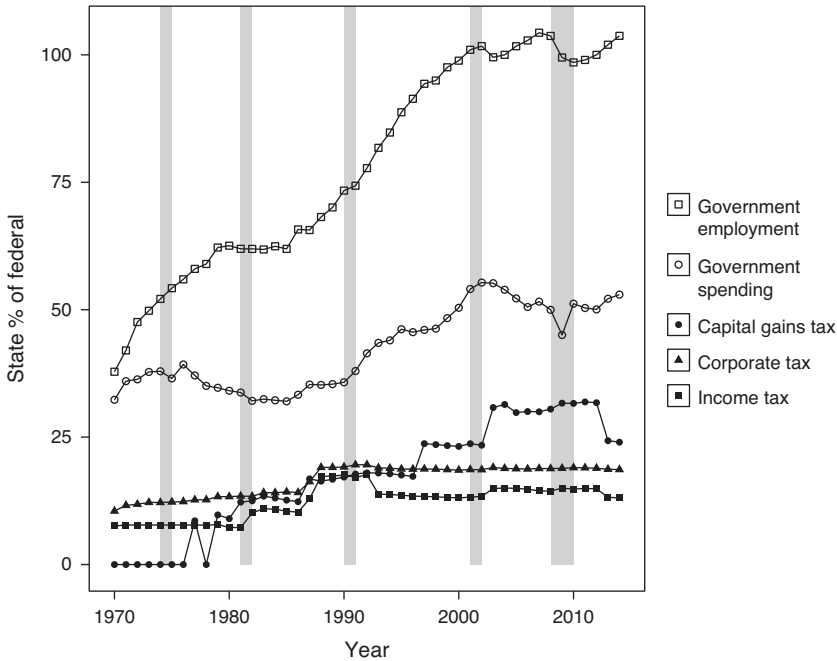


FIGURE 3.2. Fiscal Activity Shifts toward States, 1970–2014.

percentage of its corresponding federal level.¹⁰ Each of these measures of fiscal activity shows an expanding role of state government since the late 1970s. The line marked by empty circles, government spending, increases both because states begin to spend much more on their prison systems through the 1980s and 1990s and because the federal government slows spending (though it's worth noting that this slowdown is concentrated in domestic spending, not military). Similarly, the lines representing taxation (with the shapes shaded black) show the shift toward the state level. In income taxes, for example, the top marginal rate at the federal level of 71.75 percent in 1970 hit a postwar nadir of 28 percent in 1988, whereas some liberal states like California increased top marginal rates to about 14 percent—still much lower than the federal rate but a record for state-level taxation. Shaded years represent recessions, which tend to temporarily increase the role of the federal government compared to the states.

The bulk of public spending, and especially public employment, saw massive shifts from the national to the state level. This trend again partly reflects

10. State percent of federal taxes is in terms of nominal tax rates, not revenue raised.

the national government's slowdown in domestic policymaking, but it is more so the result of the huge buildup of state prison systems in the era of mass incarceration. Per capita spending on prisons and jails, almost all at the state level, more than quadrupled since 1980—closely tracking the expansion of the U.S. prison population.

Fiscal activity has moved downward across the levels of American federalism in recent decades. But fiscal activity is not the only way we can analyze the expanding role of the state level. We can also look directly at major state policy outcomes in many different issue areas, such as abortion, environmental, and labor policy. In the next section, I describe how I use a large data set of state policies to *measure* changes in state policy outcomes over time.

Measuring Policy Outcomes

In this section, I describe my strategy to measure policy outcomes and estimate the changing relationship between party control and policy. I developed a comprehensive data set of state policy outcomes since 1970,¹¹ but to build it, I stood on the shoulders of giants. I collected data on 35 policies, to which I added data from Jordan and Grossmann 2016, Caughey and Warshaw 2016, and Boehmke and Skinner 2012 to create a data set of 135 policies. (I also extended years of coverage for 16 policies from the other data sets.) Caughey and Warshaw (2016, 902–3 and Supplemental Material) provide a detailed description of many of the policies, which can be binary (e.g., Right to Work laws), ordinal (e.g., mandatory parental notification or consent for a minor's abortion), or continuous (e.g., marginal tax rate on high incomes). Table 3.1 lists the policies.

The data I collected cover policies of considerable importance. They include election laws and state capital gains taxes, as well as various regulations related to public sector unions (Anzia and Moe 2016), abortion rights and coverage (Guttmacher Institute), campaign finance (Barber 2016b), and immigrant workers (National Council of State Legislatures). I also collected data on state laws that preempt localities from raising the minimum wage or requiring companies to provide paid sick leave for employees (see Riverstone-Newell 2017).

11. I start in 1970 because of the difficulty in comparing the modern period with the Jim Crow regime, which entailed mass disenfranchisement of Black Americans and a de jure racial caste system.

TABLE 3.1. Ideological Content of Issue Areas

Issue Area	Concept
Abortion	Legal right to and cost of emergency contraception and abortion
Campaign Finance	Restrictions on individual, corporate, PAC contributions; public funding of elections
Civil Rights & Liberties	Penalties for discrimination based on race, gender; religious privileges
Criminal Justice	Punitiveness
Drugs	State legality of federally illicit drugs (especially marijuana)
Education	Spending; public vs. private control
Environment	Restriction on emissions, chemicals; protection of species
Guns	Legal rights to purchase, own, or carry a firearm
Health & Welfare	Generosity (eligibility, benefit levels)
Housing & Transportation	Command and control
Immigration	Legal right to public services for undocumented; regulation of hiring undocumented
Labor	Right to unionize; wage laws
LGBT	Protections or penalties for homosexuality
Taxes	Marginal rate; progressivity
Voting	Cost, access to voting

Of particular importance are my data on criminal justice policies. Although some research focuses specifically on criminal justice (e.g., Yates and Fording 2005), research that summarizes policy across issue areas has neglected incarceration. For instance, aside from a few drug-related policies (e.g., medical marijuana laws), the Caughey and Warshaw (2016) data set only contains data on four criminal justice policies: death penalty repeal, the establishment of probation (only for the 1936–39 period), animal cruelty as a felony, and age-span provisions for statutory rape cases (i.e., the decriminalization of sex between consenting teenagers of similar ages). These policies are generally orthogonal to the rise of mass incarceration. I collected data on laws that criminal justice research considers central to the rise of mass incarceration (for a review, see Travis, Western, and Redburn 2014, chap. 3): truth-in-sentencing laws, which require individuals to serve a minimum percentage of their original sentence; three strikes laws, which increase penalties for an individual's third felony; and determinate sentencing laws, which specify mandatory minimum sentences.¹²

12. In some instances, these “tough on crime” policies were passed by ballot initiative, such as California’s three strikes proposition in 1994.

To measure party control of government, I used variables that indicate whether a state is under unified Democratic control, unified Republican control, or divided control (Klarner 2013). While control of the executive branch or one or more legislative chambers may have an independent or partial effect on policy outcomes (Smith 1997), I focused on unified control because polarization and divided government interact to produce gridlock (Binder 1999). Key to the analyses is the comparison of the party-policy relationship across time. Because policy change is rare compared to other political dynamics, estimating a completely dynamic party effect (i.e., by year) is difficult. Precision and clarity are greatly improved by estimating an average party effect for different eras that span multiple years (e.g., Caughey, Warshaw, and Xu 2017, table 3). I primarily compared the association between party control and policy change during two eras: the 1970–99 period and the 2000–2014 period.¹³ In practice, this entails interacting the party control variable with a dummy variable for the 2000–2014 period to estimate the marginal effect of party control on policy change during the different eras. Temporal breaks in time-series models can also be estimated empirically. Chow tests reject the null of no structural break in the party-policy relationship between 1999 and 2000 with $p < 0.01$ for every policy measure used in this study, which suggests that there is, indeed, a significant change in the relationship between party control and policy outcomes between the 1970–1999 and 2000–2014 periods.

Unidimensional Measures

Political scientists often summarize public opinion, legislative votes, and, more recently, policy outcomes on a unidimensional left-right orientation. Recent unidimensional policy measures provide a summary of the ideological content of policy on a dimension typically described as “policy liberalism” or “the role of government” (Erikson, Wright, and McIver 1993; Caughey and Warshaw 2016). Each state gets a policy “score” or “ideal point” for each year, representing the left-right orientation of its policies. In this section, I briefly summarize my findings on *unidimensional* measures, as a prelude to more detailed presentation of my study of *issue-specific* policy dynamics.

13. Setting this threshold between 1999 and 2000 strikes a balance between periods that are long enough (precision) and highlights the potentially precipitous increase in policy polarization in the most recent years of hyperpolarization (Mann and Ornstein 2013).

As a first cut at the data, I estimated policy variation and polarization with four unidimensional left-right measures of policy outcomes. The first is the State Policy Liberalism (SPL) measure from Caughey and Warshaw (2016), a set of state-year policy ideal points generated from a dynamic Bayesian IRT model. Second, I estimated the same ideal point model with my expanded policy data set to produce an Expanded SPL measure. The third and fourth measures are Substantive Scales, simple additive indices (averages) that are the sum of a state's liberal policies minus its conservative policies in a given year. These measures serve as expert-coded alternatives to the Bayesian IRT latent dimension estimates and are analogous to the "Policy" measure of Erikson, MacKuen, and Stimson (2002, chap. 9). One of the additive indices weights policies equally, while the other is the average of issue area-specific indices. (Subsequent sections address how the ideological direction of policies is determined.) All measures are normalized to a range between 0 and 1.

This exploratory analysis suggests that policy *variation* has increased across states over time. The spread of policy ideal points has widened greatly since the 1970s. The range and standard deviation estimates are remarkably similar across the measures. The range of ideal points is at least a third larger in the 2010s than in the 1970s and 1980s, and the standard deviation is at least two-thirds larger.¹⁴

These measures also suggest that this growing variation is related to party control of state government—policy *polarization* has increased. Using dynamic panel regressions, figure A.1 plots the marginal effect of unified party control of government on change in ideal points for the 1970–99 period and the 2000–2014 period. All of the estimates show at least a twofold increase in the magnitude of the relationship between party control and policy ideal points (see also Caughey, Warshaw, and Xu 2017). The expanding variation and polarization evident in the unidimensional analysis motivates the investigation of *issue-specific* policy dynamics. Unidimensional ideal points serve as strong summary measures, but generally, they may create obstacles to inference by obscuring multidimensional variation or conflating extremism and

14. The Substantive Scales, which do not use data from earlier years to smooth ideal points over time like the Bayesian IRT measures, show slightly larger increases in range and standard deviation over time (starting from slightly lower in the 1970s and ending slightly higher in the 2010s).

consistency (Broockman 2016), and they rely on relatively strong assumptions about the comparability of policies across issue domains.¹⁵

More importantly, it is difficult to draw conclusions about the substantive content of policy—its effect on members of the polity—from unidimensional ideal point estimates. Policy scholars may be interested in more specific temporal dynamics in residents' relationship to government. Are state abortion laws more or less restrictive? In which direction have state tax rates, restrictions on campaign contributions, and the generosity of welfare benefits moved in recent decades?

Policy Indices by Issue Area

Issue area measures provide a clearer picture of historical changes in policy substance. Although many studies have employed summary measures of policy outcomes in a single issue area (e.g., Norrander and Wilcox 1999; Hero and Preuhs 2007), mine is the first to compare across many issue area indices. I group the policies into sixteen discrete issue areas: abortion, campaign finance, civil rights and liberties, criminal justice, drug policy, education, environment, gun control, health and welfare, housing and transportation, immigration, labor (private sector), labor (public sector), LGBT rights, taxes, and voting.

In each area, I calculate a simple substantive measure of average policy outcomes: the number of liberal policies minus the number of conservative policies (see also Erikson, MacKuen, and Stimson 2002, chap. 9). Because policies can be binary (e.g., medical marijuana laws), ordinal (e.g., voter ID laws, which can be strict or non-strict), or continuous (e.g., minimum wage level), I normalize each policy to range from 0 to 1. A binary policy, which a state either has or does not have, takes on the value of 0 or 1, whereas an ordinal

15. Additionally, although they may be advantageous in the study of roll-call votes (e.g., Clinton, Jackman, and Rivers 2004), there are two reasons to prefer straightforward additive indices over latent dimension estimates (e.g., factor analysis or Bayesian IRT) for the measurement of *policy outcomes*. Historical, normative, and policy scholarship provides clear priors about the ideological content of policy. Empirically deriving model parameters (the ideological content of policy) from the data rests on the joint assumption that (a) liberal states are liberal because they pass liberal policies, and (b) liberal policies are liberal because liberal states pass them. When this assumption is violated historically (e.g., during the 1960s and 1970s some conservative southern states were early adopters of liberal abortion laws), the model may produce parameters that do not conform to substantive understandings about the ideological content of policy.

or continuous policy, such as a tax or minimum wage, is transformed to the [0, 1] scale. A state's score in an issue area index is therefore the sum of the liberal policies minus the sum of the conservative policies.

This kind of measure relies on three assumptions: first, the ideological "direction" of policy (whether it is liberal, conservative, or neither); second, that policies are of equal substantive importance; and third, that the direction and importance remain constant over time. These assumptions are unlikely to be satisfied in practice, especially equality of substantive importance.¹⁶ However, I argue that these simple index measures strike a balance between agnosticism, precision, transparency, risk of bias, and substantive interpretability.

Determining the *ideological direction* of more than 130 policies is a difficult task. The primary left-right ideological dimension, or "what goes with what," has changed over time, but for the most part political observers characterize policies on the *left* to be those that (1) expand the use of state power for economic regulation and redistribution (Rawls 1971; Foner 1984; Weir 2005; Wang 2005; Brinkley 2011) or increase or protect the rights of historically marginalized groups in society (Black Americans and other non-white racial groups, women, LGBT individuals, immigrants, and religious minorities) (DuBois 1935; Foner 1988; Kessler-Harris 2001; Shelby 2005; Kollman and Waites 2009); and (2) restrict the use of state power for the punishment of deviant social behavior (Simon 2007). Policies on the *right* do the opposite (Himmelstein 1992; Brinkley 1994; Harvey 2007). Although there is considerable nuance throughout political and intellectual history, in short, left policies promote social libertarianism and economic interventionism, while right policies promote traditional (incumbent) social values and oppose state intervention in markets.

Yet even with this large body of historical and normative scholarship, there is still no objective, unifying test of whether a certain moral principle, political action, or legal statute is on the left or right. Many scholars argue that the first dimension of politics represents the "size of government" (Poole and Rosenthal 1997), but this is not always the case. For instance, policies that expand rights and protections for Black Americans, which are understood to be liberal, can involve expansions of state power (e.g., anti-lynching laws) or restrictions on state power (e.g., laws that reduce prison sentences). The same is true of

16. One might argue, for example, that income taxes are more substantively and normatively consequential than capital gains taxes and should thus be weighted more heavily in calculating the issue area indices.

abortion laws, where Medicaid coverage of abortion and bans on “partial birth abortion” both involve greater state intervention but are quite ideologically distinct. It is thus no surprise that there is an ongoing debate about whether the clustering of policies along partisan and ideological lines is due to “natural” ideological or psychological principles (e.g., Haidt 2012) or whether they are the products of idiosyncratic historical coalition partnerships between interests in society that over time became path-dependent (e.g., Karol 2009; Bawn et al. 2012).

I argue that an *issue-specific* left-right conceptualization can improve inference for studies of policy dynamics. Rather than assuming that issues “go together” in unidimensional space, table 3.1 shows conceptual dimensions that determine the ideological direction of policies within each issue area.¹⁷ The left-right dimension for abortion policy, for example, represents the legality and costs (broadly defined) of obtaining an abortion. Other issue areas represent multiple related concepts. Tax policy, for example, is comprised of two concepts: absolute rates and progressivity (the distribution of marginal rates across income levels), and health and welfare policy is comprised of both benefit levels and the strictness of eligibility. I base a policy’s *direction*—left, right, or, in a small number of cases, neither—on its expected effect on the issue-specific dimension. This issue-specific conceptualization also helps avoid the problem of sorting and shifts over time regarding which issues “go together” on a single left-right dimension. While the cluster of issues on the left and right has shifted over the nineteenth and twentieth centuries (e.g., Schickler 2013), issue-specific assessments (e.g., whether a policy restricts or broadens access to abortion) have largely remained constant.¹⁸

Interstate Policy Variation

In this section I estimate change in state policy since 1970. Figure 3.3 plots each issue area policy index. The gray lines represent the policy outcomes for each individual state over time.

17. Within an issue area, a policy can be on the “left” or “right,” but these terms are simply shorthand for the concepts described in table 3.1.

18. Of the 135 policies shown in table 3.1, I exclude the 15 in the Other category because they (a) have unclear issue-specific ideological content (e.g., animal cruelty felony), (b) are socioeconomically inconsequential (e.g., beer keg registration), and/or (c) are insufficiently varied or numerous to create an issue area (e.g., state lotteries).

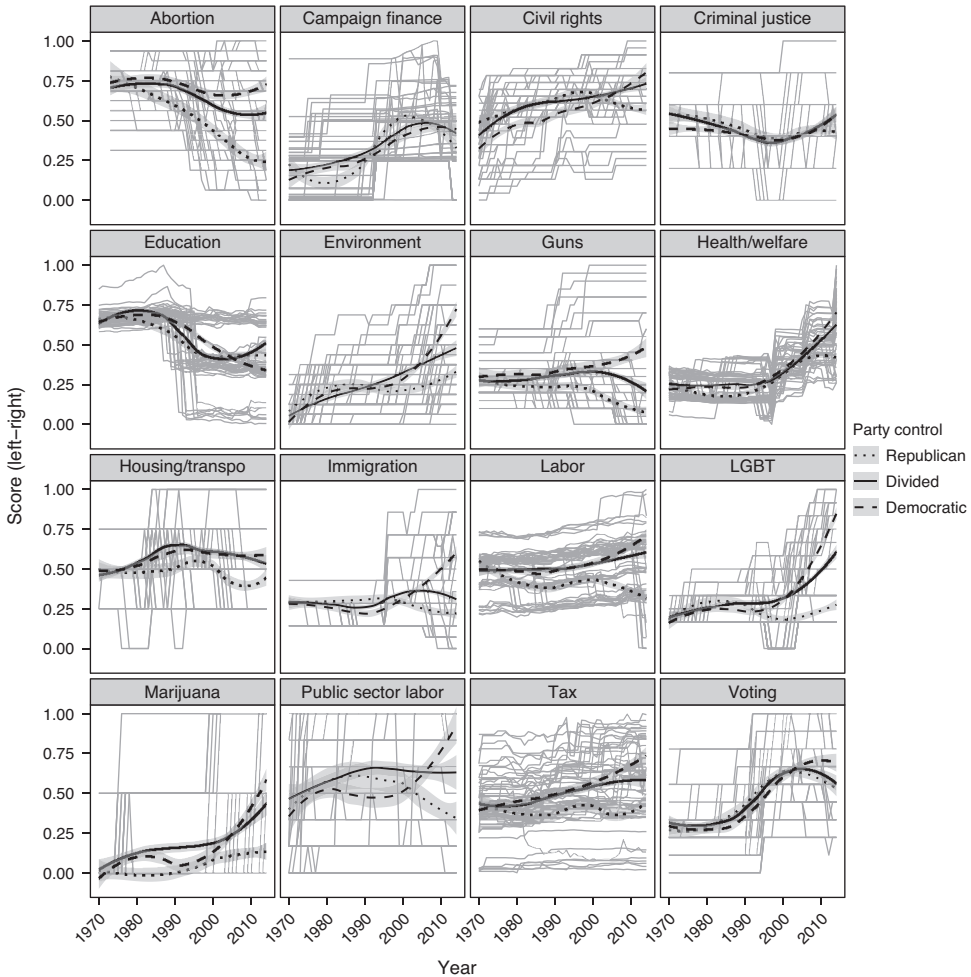


FIGURE 3.3. State Policy Outcomes by Party Control.

States' policy outcomes within each issue area diverge greatly over time; this represents increased *overall variation* in state policy outcomes in each area. Compared to the 1970s, the policy regime under which an individual lives is increasingly determined by her state of residence. For instance:

- Abortion: In 1973, states only differed in Medicaid coverage for abortion and other minor regulations. By 2014, the most restrictive states mandated waiting periods, parental notification, counseling, licensed

physicians, a twenty-week gestation limit, and restricted insurance coverage for abortion.

- **Environment:** In 1970, the greenest states had state EPAs and endangered species laws. By 2014, they had strict regulations of greenhouse gas emissions for cars and utilities, solar tax credits, and a plethora of recycling programs.
- **Gun Control:** In 1970, the least strict states allowed open carry and the strictest states required dealer licenses and purchaser background checks. By 2014, the least strict states had added Stand Your Ground laws, while the strictest states banned assault weapons and mandated registration and waiting periods for purchases.
- **Health and Welfare:** In 1970, states varied in AFDC benefits and Medicaid adoption. By 2014, Massachusetts offered generous TANF and SCHIP benefits and had expanded Medicaid, while Alabama did not expand Medicaid, required drug tests for public benefits, and required a monthly income below \$268 for a family of three to qualify for TANF.¹⁹
- **Immigration:** In 1970, states mostly varied in laws establishing English as official state language, and all legal immigrants were eligible for public welfare and health programs. By 2014, only some states provided public benefits to new legal immigrants.²⁰ Some states provided in-state tuition for undocumented college students, allowed drivers licenses for undocumented immigrants, and banned the use of e-verify for employment, while other states required all employers to use it.
- **Taxes:** In 1970, some states had no income or capital gains taxes, while the highest tax state, Vermont, had a 5.54 percent top capital gains rate and 14.88 percent top income rate. By 2014, many states continued to collect no income or investment taxes, but California had a 14.1 percent top capital gains rate and a 14.1 percent top income rate.

Some areas, such as environmental policy, become more liberal over time on average. All of the major policies in this area increase environmental regulation or public spending in pursuit of environmental quality, and the most conservative states on the environment simply do not pass the major

19. This (\$268 per month) is about 16 percent of the Federal Poverty Level for a family of three.

20. The 1996 welfare reform made legal immigrants ineligible for federal benefits for the first five years of residency; some states then moved to cover these new immigrants in their Medicaid, TANF, and SCHIP programs using only state funding (Hero and Preuhs 2007).

environmental laws that the “green” states do. Of course, as we gain greater understanding of the reality of climate change—that maintaining the status quo will lead to utter catastrophe—the liberal policy shifts appear less and less substantial relative to the scale of the problem.

State economic policies in the health and welfare issue area also move in a liberal direction over time as states implement programs like SCHIP and expanded Medicaid. In his book *Red State Blues* (2019, chap. 3), Matt Grossmann points to these liberal economic policy shifts in the states as evidence that the conservative policy push has been mostly unsuccessful. Grossmann makes an important point that conservative victories often only block expansions of the welfare state and progressive policies, not fully reverse them.²¹ But this is another moment where attention to *federalism*, rather than *state politics*, matters for our inferences. In the economic policy areas that have seen a leftward shift in the states, one must keep in mind that although the average *state* government has expanded its taxation and social welfare provision, U.S. taxation and the welfare state taken *as a whole* have not expanded the same way.²² For example, while states like California raised income taxes on high earners to a level never before done by a state government, this increase was a fraction of the size of federal tax *cuts* over the same time period. The shift of policymaking to the states is associated with a friendlier overall tax and welfare state environment for the wealthy.

Abortion policy, in contrast to the economic and regulatory policy areas, tracks more conservatively since *Roe v. Wade* (1973). A few states become more liberal on abortion over time as they pass laws to provide Medicaid coverage for abortion and over-the-counter emergency contraception. This liberal trend, however, is swamped by the spread of abortion restrictions in states, such as mandatory parental notice for minors and bans on “partial birth abortion.” Though not included in this analysis, prior research finds similar dynamics for Targeted Regulation of Abortion Provider (TRAP) laws, which “single out abortion providers and impose on them requirements and regulations that are excessive and more stringent than those imposed on other medical practitioners” (Medoff and Dennis 2011, 955).

21. Research in comparative political economy has long emphasized the difficulty of rolling back the welfare state, as beneficiaries become entrenched and block welfare state retrenchment (Pierson 1994), though more “submerged” forms of retrenchment have affected the American welfare state in particular (Hacker 2004).

22. The Affordable Care Act and, to a lesser extent, SCHIP were welfare state expansions, but the United States also experienced retrenchment in the 1996 welfare reform, as well as more “submerged” forms of retrenchment in welfare state policies around retirement, employee health benefits, and other areas (Hacker 2004).

A third set of issue areas, such as immigration and labor, sees similar growth in *variation* but does not become more liberal or conservative on average since the 1970s. Each issue area shows growing *policy variation* across states, but they also show partisan *policy polarization*: policy outcomes in Republican states are more distant from those in Democratic states. In particular, figure 3.3 shows the correlation between party control and policy outcomes in each area (with the dashed lines representing unified Democratic states, the dotted lines representing unified Republican states, and the solid line representing divided states). There are two issue areas that do not fit this pattern, where increased overall variation appears nonpartisan: criminal justice and education.

The averages of Republican, Democratic, and divided states in figure 3.3, however, are simple correlations, so the growing policy divergence by party control could be simple sorting—states with conservative policies becoming Republican and states with liberal policies becoming Democratic. To test the changing relationship between party control and policy *change*, in contrast, I estimate dynamic panel regressions and compare the marginal effect of party control on policy outcomes for the 1970–99 period and the 2000–2014 period. Figure 3.4 plots these results.

Partisan Policy Polarization

Figure 3.4, which tests the relationship between party control and policy *change*, corroborates the correlations shown in figure 3.3.²³ Again, in 14 of the 16 issue areas, the party effect polarizes after 1999: there is a greater difference in the effect of unified Democratic control relative to that of unified Republican control in the 2000–2014 period than in the 1970–99 period. The amount of polarization depends on the partisanship of policy—that is, whether, for instance, Democratic states increase taxes relative to Republican states. But the overall amount of policy activity in a given area matters. For example, states become less active on civil rights and liberties as time progresses but more active in areas like drug policy, LGBT rights, and voting rights.

Figure 3.4 shows that party control is no better at predicting policy change in criminal justice or education in recent years. Both before and after 2000, party control does not predict change in criminal justice policies. States controlled by Democrats pass punitive and liberal criminal justice policies at

23. I follow the dynamic panel models of Caughey, Warshaw, and Xu (2017), who add lagged dependent variables for year $t-1$ and $t-2$ to traditional two-way fixed-effects models to improve fit.

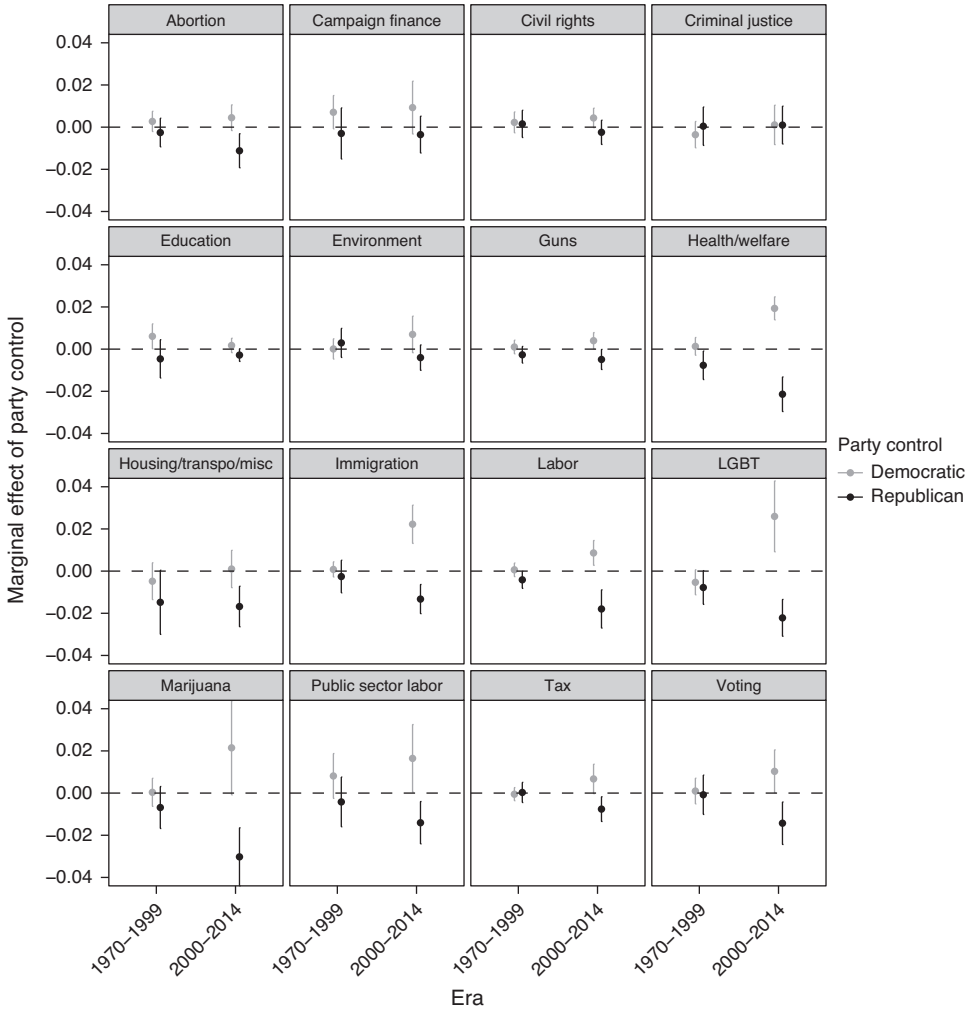


FIGURE 3.4. The Effect of Party Control on Policy Outcomes.

similar rates to divided and Republican states. In both eras, states controlled by Democrats are slightly more likely to pass liberal education policies (e.g., increase spending in K–12 or higher education) and less likely to pass school choice, voucher, and charter laws. However, party control becomes slightly *less* predictive of education policy changes after 2000. In both of these issue areas, the static or decreasing predictiveness of party control stands in contrast to the other 14 issue areas in which party control increasingly explains policy change.

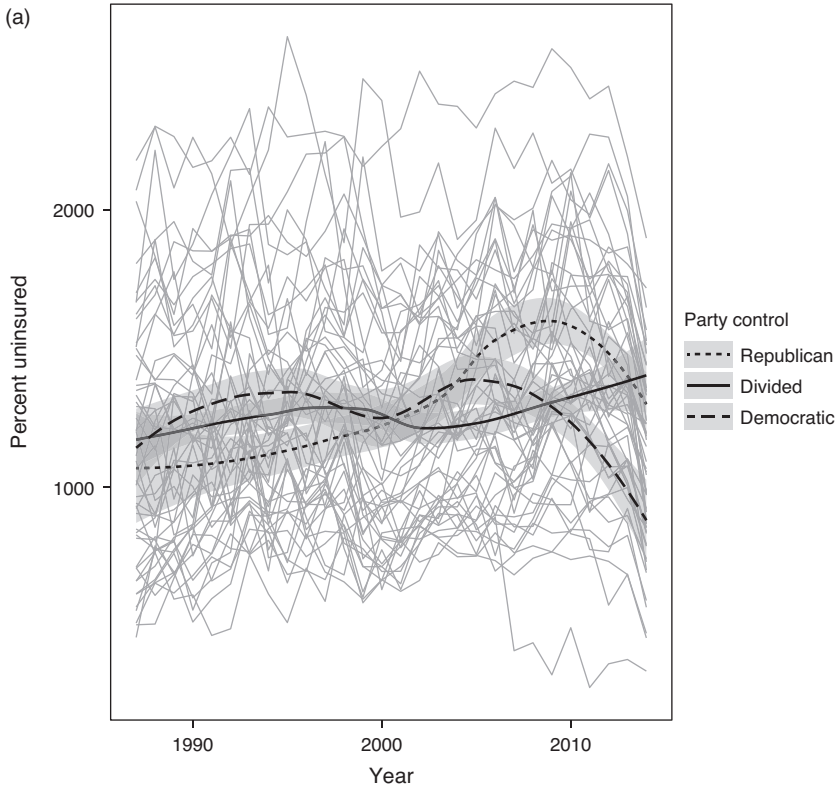


FIGURE 3.5. Party Control and Health Insurance Coverage.

Note: Party control increasingly predicts health insurance coverage over time. Plot (a) shows the average percent uninsured by state party control over time (using loess). Plot (b) shows the marginal effect of unified Republican control on the uninsured rate for the 1987–99 period and the 2000–2014 period across three time-series model specifications.

But does this policy polarization matter for the lives of these states' residents? Does it matter for socioeconomic outcomes that there is polarization in 14 issue areas, such as tax and health policy, but *non-polarization* in criminal justice and education?

How Policy Polarization Affects the Lives of Americans

The polarization of policy carries major socioeconomic consequences for residents. In the polarized areas of health and environmental policy, party control of state government increasingly predicts rates of health coverage and carbon intensity of a state's energy supply, respectively. In the non-polarized areas of criminal

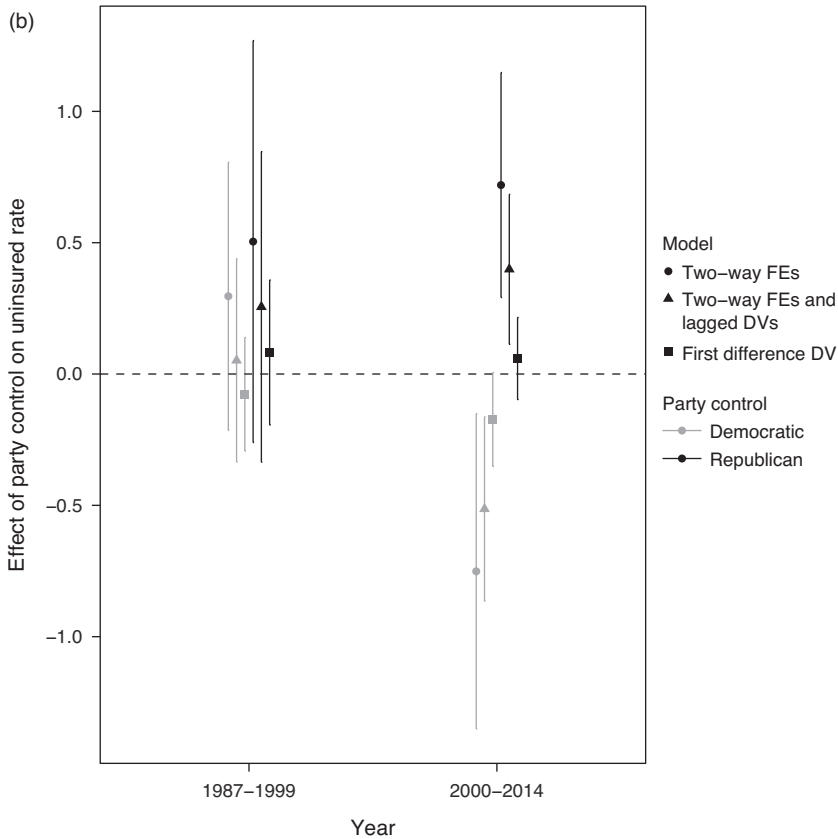


FIGURE 3.5. (continued)

justice and education, however, party control *does not* increasingly predict rates of incarceration (overall or among Black residents) or graduation rates, respectively. In this section, I focus in depth on health and criminal justice policy.

The health policy agendas of the national Democratic and Republican parties have been distinct since at least the 1930s. Health policy in the states has been similarly polarized for decades, as Democratic states have tended to have more generous Medicaid eligibility and benefits. As the role of states in health policy expanded with the development of state prescription drug benefits for seniors, as well as federal grants for the State Children's Health Program (1998) and Medicaid expansion under the Affordable Care Act (2014), state health policies increasingly varied—and this variation was increasingly related to party control of government (Trachtman 2020).

Socioeconomic *outcomes* related to health policy polarized accordingly. Figure 3.5 shows the relationship between party control and the *uninsured rate*.

Plot (a) displays state uninsured rates (the gray lines) and the average Republican (dotted), Democratic (dashed), and divided (solid) state from 1987 through 2014. Plot (b) shows the marginal effect of party control for the 1987–99 and 2000–2014 periods from different time-series regression models.

In both the correlation and the regressions, party control of government is increasingly associated with health insurance coverage in more recent years. Whereas prior to 2000, party control does *not* predict change in the uninsured rate, after 2000 unified Republican control is associated with a 0.75-percentage-point increase in the uninsured rate and unified Democratic control is associated with a 0.75-percentage-point decrease in the uninsured rate. These differences in coverage are of considerable social consequence. Health policy scholars, for instance, “estimate the number of deaths attributable to the lack of Medicaid expansion in opt-out states at between 7,115 and 17,104” (Dickman et al. 2014).

Other research highlights how state policy changes and polarization have affected the lives of Americans in other ways. Wisconsin’s restrictions on public sector unions’ collective bargaining in 2011 increased the gender wage gap among teachers, with women’s wages falling relative to men’s (Biasi and Sarsons 2020). The expansion of state earned income tax credit (EITC) policies for low-income families increased children’s future employment and earnings prospects (Bastian and Micheltore 2018). States that increased their minimum wage reduced criminal recidivism (Agan and Makowsky, forthcoming). State climate policies, such as public benefit funds and renewable portfolio standards, reduced carbon emissions (Prasad and Munch 2012; Wakiyama and Zusman 2021). Although it is hard to estimate precisely, it appears that state assault weapon bans reduce the number of school shootings (Gius 2018).

In contrast, education and criminal justice policies are—uniquely—non-polarized. In education, Democratic state governments pass school choice and charter school laws and spend at similar rates to Republican state governments.²⁴ In criminal justice even more so, Democratic and Republican states both instituted “tough on crime” laws that led to mass incarceration. The lack of polarization in these areas relative to others has largely reflected the positions of the national Democratic and Republican parties, and a substantial literature describes the bipartisan history of policymaking in these areas (e.g.,

24. However, I do find a modest increase in polarization in K–12 spending per pupil (but not higher education spending), with Democratic governments spending more than Republican governments after 2000.

DeBray 2006; Hursh 2007; Weaver 2007; Alexander 2012; Wolbrecht and Hartney 2014).

Criminal Justice Policy Is Similar in Red and Blue States

Mass incarceration—the internationally unprecedented number and proportion of Americans, disproportionately Black, under correctional control—has drawn increasing scholarly attention with respect to its origins (Weaver 2007; Lacey 2008; Wacquant 2009; Alexander 2012) and consequences (Western 2006; Manza and Uggen 2008; Weaver and Lerman 2010). The same is true of the most public-facing side of the criminal justice system: policing (Forman 2004; Cohen 2010; Fortner 2015; Harris 2016; Stuart 2016; Soss and Weaver 2017). And more importantly, they have generated historically widespread protests based in the Black Lives Matter movement.

The rise of racially authoritarian policing and mass incarceration is the result of changes in law and bureaucracy *in the fifty states*. Of the powers reserved to the states in the Tenth Amendment of the U.S. Constitution, *police powers* are the most prominent and likely the most socially consequential. State and local agencies account for the overwhelming majority of law enforcement, and the federal prison system houses less than 6 percent of the U.S. incarcerated population. There is new but limited research focusing on the interaction of mass incarceration and federalism (Miller 2008; Lacey and Soskice 2015; Miller 2016).

But, curiously, many observers point their righteous indignation not at the state or local level but at national authorities. “I Was Arrested, Jailed and Assaulted by a Guard; My ‘Crime’? Being a Journalist in Trump’s America,” read a July 9, 2020, headline from the UK newspaper the *Independent*. British journalist Andrew Buncombe was arrested for the “failure to disperse” during the Black Lives Matter protests on July 1, 2020, surrounding the then recent police killing of George Floyd.²⁵ This perspective on the Trump presidency makes some sense. Trump has had a confrontational history with the press, frequently attacking journalists and journalism more broadly, and the independent

25. Andrew Buncombe, “I Was Arrested, Jailed and Assaulted by a Guard; My ‘Crime’? Being a Journalist in Trump’s America,” *Independent*, July 9, 2020, <https://www.independent.co.uk/news/world/americas/journalist-arrest-seattle-chaz-protest-police-prison-black-lives-matter-a9606846.html>.

Freedom of Press Foundation counted 149 assaults of journalists by police and more than 45 arrests between May 25 and June 4, 2020.²⁶

Yet the Seattle Police Department (SPD) that arrested Buncombe is not under the authority of the federal government. It is part of the City of Seattle, a well-known liberal city with a Democratic local government, which derives its legal status from Washington State, a well-known liberal state with a Democratic state government.²⁷ While the broader trends toward a more authoritarian form of governance under President Trump have been rightly noted by scholars, the authoritarianism here is of a different sort. Buncombe's arrest was the result of a police department that felt comfortable arresting and detaining a journalist for the crime of recording events, a police department whose authority derives from the city and state, not the federal government. In fact, prosecutions of peaceful protestors by state and local authorities in both red and blue states skyrocketed during the 2020 Black Lives Matter movement.²⁸

Democratic and Republican states alike have enabled police to take excessive and violent action against journalists, protesters, and ordinary (especially Black) Americans. From state and local prosecutors who refuse to bring charges to legislatures that pass laws shielding police from consequences, many state and local actors from both major political parties have converged to enable the expansion of police violence and prison populations. Despite the social importance and comparative punitiveness of American criminal justice policy, its politics has been mostly bipartisan as the parties compete to be perceived as "tough on crime." Vesla Weaver (2007, 261) discusses how after 1968 "even liberal Democrats did not talk about civil rights without deploring crime." Michelle Alexander (2012, 55–56) places responsibility on not only the Republican Party but also on Democrats for adopting "tough on crime" policies, especially during the 1990s. At the local and county levels, Justin de Benedictis-Kessner and Christopher Warshaw (2016, 2020) find

26. Trevor Timm, "We Crunched the Numbers: Police—Not Protestors—Are Overwhelmingly Responsible for Attacking Journalists," *Intercept*, June 4, 2020, <https://theintercept.com/2020/06/04/journalists-attacked-police-george-floyd-protests/>.

27. First-class city, RCW 35.01.010.

28. Adam Gabbatt, "Felony Charges against BLM Protesters Are 'Suppression Tactic,' Experts Say," *Guardian*, August 16, 2020, <https://www.theguardian.com/world/2020/aug/16/felony-charges-blm-protesters-suppression-tactic>.

TABLE 3.2. Criminal Justice Policies by Party Control

	Policies Passed (Repealed) by Party Control					
	Democratic		Divided		Republican	
	1970–1999	2000–2014	1970–1999	2000–2014	1970–1999	2000–2014
Three Strikes	8	1	11	1	5	0
Determinate Sentencing	6 (1)	1	11 (1)	0	2	0 (2)
Truth in Sentencing	5	0	4 (2)	0	1	0
Death Penalty Repeal	2	5	1	1	0	0

Note: Democratic and divided state governments passed more punitive criminal justice policies than did Republican governments, though removal of the death penalty mostly occurred in Democratic states. Numbers in parentheses represent repeals.

that Democratic and Republican mayors spend similar amounts on policing in their cities and that the partisanship of county legislatures has no effect on police spending.

As shown in table 3.2, punitive criminal justice policy has not polarized in the states. An exception is the repeal of the death penalty; five Democratic states repealed the death penalty between 2000 and 2014.²⁹

Jeff Yates and Richard Fording (2005) find a significant association between Republican control of government and incarceration rates for white and especially for Black people between 1978 and 1995, and I similarly find a statistically significant effect of unified Republican government for the 1978–99 period.³⁰ The substantive effect, however, is modest and inconsistent across models: the two-way fixed-effect model (the least strict test) shows an increased incarceration rate of about 30 people per 100,000 residents, but the other models show no effect (see Plot (b) in figure 3.6). An increase in a state incarceration rate of

29. Though the states' execution of 1,445 individuals since 1976 is of great social consequence, it is less related to mass incarceration than the other policies because in all likelihood these individuals would have been given a life sentence had the death penalty not been in effect. Moreover, the death penalty is unique because Texas is responsible for more than a third (542) of the executions in the United States since the death penalty was ruled constitutional in 1976.

30. Data on incarcerated populations are from the Bureau of Justice Statistics (ICPSR 36281). Yearly state population estimates by race are from linear interpolation of decennial Census numbers (Weden et al. 2015).

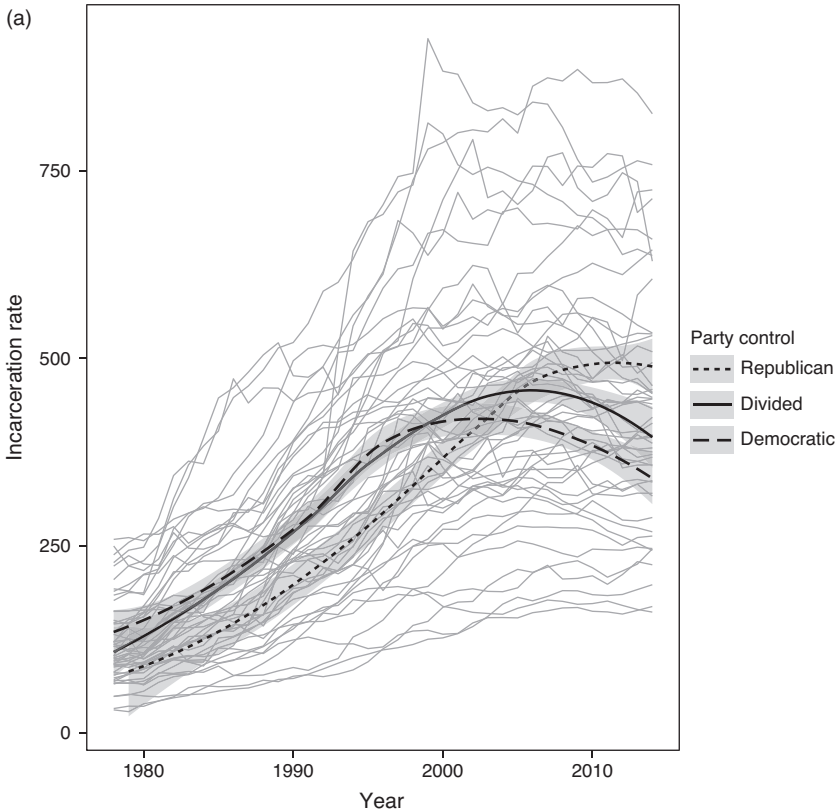


FIGURE 3.6. Incarceration Does Not Polarize by Party over Time.

Note: Incarceration *does not* polarize by party over time. Plot (a) shows the average incarceration rate per 100,000 residents by state party control over time (using loess). Plot (b) shows the marginal effect of unified Republican control on the incarceration rate for the 1978–99 period and the 2000–2012 period across three time-series model specifications. Models control for the crime rate at year $t - 1$ (see Yates and Fording 2005).

30 individuals per 100,000 residents is substantively minuscule in a society in which one in 36 adults are under correctional jurisdiction.³¹

More importantly, there is no evidence of a polarization of incarceration rates by party across time. This *decreased* effect of Republican control in the post-2000 period is a stark contrast to the rapid polarization in other policy areas.

31. This is the 2014 estimate from the Bureau of Justice Statistics, and it includes people on parole or probation.

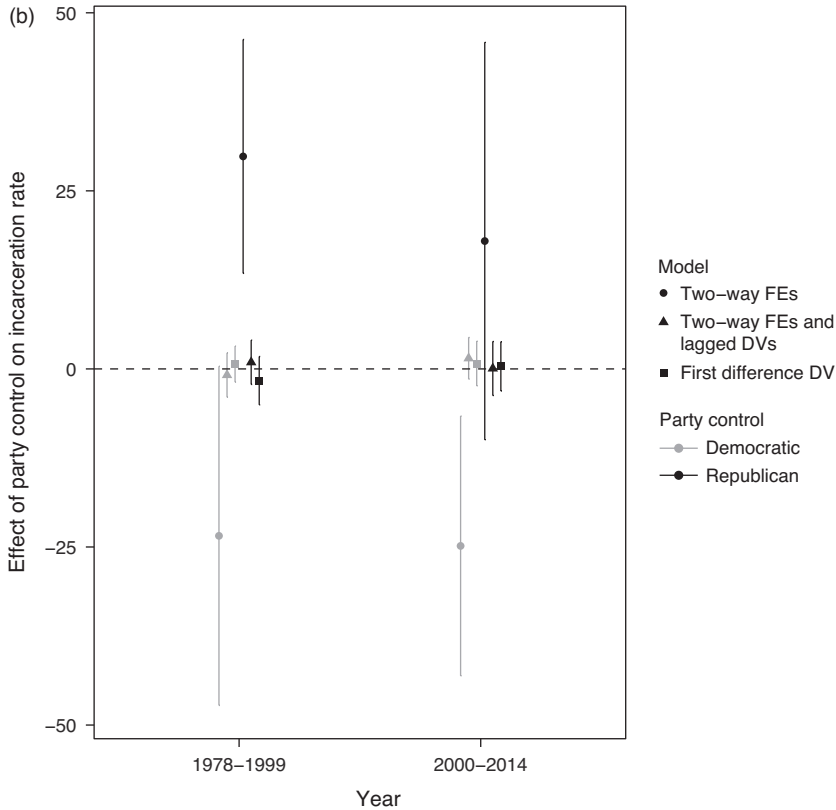


FIGURE 3.6. (continued)

I also estimated the relationship between party control and the incarceration rate for Black Americans. Even more than for the overall incarceration rate, the Black incarceration rate becomes *less polarized* after 2000. For most models prior to 2000, Republican control is associated with an increase in the Black incarceration rate of about 100 per 100,000 residents, but the party differences decrease after 2000.

Overall and Black incarceration rates do not appear to polarize in the states, but recent years have seen growing partisan conflict over the use of *private* prisons (Price and Riccucci 2005).³² The use of private prisons may be more polarized than overall incarceration because it may generate conflict not only

32. Price and Riccucci (2005) test the cross-sectional relationship between partisan and ideological variables and private incarceration for the year 1990. To the author's understanding, this is the first test of this relationship across time.

over crime and punishment concerns but also over profit incentives for punitiveness, reports of inhumane conditions, and the fundamental role of the state and the social contract (Shapiro 2011). I estimated the relationship between party control and the percent of inmates who are housed in privately owned prisons, but only beginning in 1999 due to a lack of available data. Analogous bivariate and panel regression analyses suggest a modest relationship between party control and private prisons. After 2010, Democratic states have significantly lower proportions of inmates in private facilities. However, the panel regressions show at most a small effect of party control (less than 1 percent), which is only statistically significant in the model employing the first differenced dependent variable (not the two-way fixed-effects or lagged models).

When it comes to policing and criminal justice policy, it doesn't appear to matter much whether your state or local government is red or blue. The 2020 protests following the police murders of George Floyd, Breonna Taylor, Jacob Blake, and many other Black Americans often focused on pressuring Democratic state and local officials—who in most cases control the police departments who committed these prominent murders—to implement serious policing reform. But progress has been hard to come by.

In the blue state of Minnesota, activists and a unanimous city council proposed a major restructuring of the Minneapolis Police Department, the law enforcement agency whose officer killed George Floyd. The proposal would amend Minneapolis's city charter, a process that requires a citywide ballot measure. However, in a rare procedural move, the state-appointed Minneapolis Charter Commission blocked the item from the ballot.³³

When it comes to the goal of changing policing and criminal justice policy, we have seen greater social movement pressure and favorable trends in public attitudes—and increasingly progressive rhetoric from state and local Democrats. So why has policy change been slow to come? The answer may be the same mechanism of electoral competition described by scholars like Peter Enns (2016) and Vesla Weaver (2007), that Democratic candidates (at all levels) worry about alienating white voters. Indeed, Democratic leaders vocally argued that calls from some candidates to “defund the police” did electoral

33. Liz Navratil and Miguel Otárola, “Minneapolis Charter Commission Blocks Controversial Policing Proposal from November Ballot,” *Star Tribune*, August 6, 2020, <https://www.startribune.com/charter-commission-blocks-plan-to-remake-police-from-ballot/572016392/>. This measure ended up appearing on the 2021 ballot.

harm to the party in the 2020 election. But given the scope of social movement pressure and liberalizing racial attitudes among Democratic voters, there may be another side to the story. Specifically, part of the answer may lie in the organizational power of police. American police departments have come to resemble not street-level bureaucrats in the classic public administration formulation but *cartels* that do not bow to civilian political authority.

When city councils, mayors, and even the federal government threaten to institute reforms, police rebel. They withdraw their labor: calling in sick, taking longer to respond to calls, and generally pulling out of communities.³⁴ Despite the fact that Covid-19 is considerably deadlier for police officers than violence, a nontrivial number of police officers have resigned or threatened resignation in opposition to local Covid-19 vaccine mandates.³⁵

During the George Floyd protests, the NYPD arrested the daughter of Bill de Blasio, the mayor of New York City. The Sergeants Benevolent Association (SBA) then tweeted out details of the arrest, asking, “How can the NYPD protect the city of NY from rioting anarchist[s] when the Mayor[']s object throwing daughter is one of them?” The SBA tweet disclosed Chiara de Blasio’s address and other personal details.³⁶ In some cases, this sort of coercive and threatening activity by police extends even further. After charging a protester with a Class A felony, carrying a maximum sentence of life in prison for the crime of buying red paint, police in Salt Lake City, Utah, began investigating State Senator Derek Kitchen for the alleged crime of sending the protester ten dollars.³⁷

In Portsmouth, Virginia, after protesters brought down a Confederate monument, police charged several prominent local figures with felonies, including

34. Alec MacGillis, “What Can Mayors Do When the Police Stop Doing Their Jobs?” *ProPublica*, September 3, 2020, <https://www.propublica.org/article/what-can-mayors-do-when-the-police-stop-doing-their-jobs/amp?s=07>.

35. Becky Sullivan, “Police Officers and Unions Put Up a Fight against Vaccine Mandates for Public Workers,” NPR, October 19, 2021, <https://www.npr.org/2021/10/19/1047140849/police-officers-unions-vaccine-mandates-covid-19>.

36. Eliza Relman, “Alexandria Ocasio-Cortez Accuses New York Police Union of Threatening Mayor Bill de Blasio’s Daughter after Her Arrest at Saturday’s Protests,” *Business Insider*, June 1, 2020, <https://www.businessinsider.com/aoc-attacks-nypd-for-threatening-bill-de-blasios-daughter-after-arrest-2020-6>.

37. Pat Reavy, “Utah Sen. Derek Kitchen Accused of Helping Pay for Paint Used by Protesters,” *Deseret News*, August 19, 2020, <https://www.deseret.com/utah/2020/8/19/21376211/senator-derek-kitchen-accused-helping-pay-red-paint-used-protesters-district-attorney-vandalism>.

members of the NAACP, a public defender, a school board member, and the president pro tempore of the Virginia Senate, Louise Lucas, a Black woman.³⁸ Police in Portsmouth were undeterred by the fact that Senator Lucas had not touched the monument and that Virginia state police had earlier investigated the incident, charging no one.³⁹ Police also pushed for the removal of the Portsmouth Commonwealth's attorney (i.e., the city's prosecutor), Stephanie Morales, who is Black, from the case by naming her as a potential witness. The vice mayor, Lisa Lucas-Burke, who is also Black, was further charged with a crime for calling on the chief of police to step down.⁴⁰

These are not isolated incidents. They demonstrate a deep and far-reaching problem of authoritarianism and unaccountability in American policing and criminal justice—issues that have sparked condemnation from international organizations such as the United Nations Human Rights Council. As Amnesty International notes, “All 50 states and Washington, D.C. fail to comply with international law and standards on the use of lethal force by law enforcement officers.”⁴¹ “The ‘land of the free’ has become a country of prisons,” proclaims the international organization Human Rights Watch. What I hope to highlight is the fact that this authoritarianism is both *bipartisan* and concentrated at the *state level*.

Changes in health and criminal justice policy in the states have been highly consequential for the lives of Americans. The politics of these two policy areas, however, are quite distinct. Health policy in the states has polarized considerably over the past generation based on the party in control of government. This has had major consequences for the health of states' residents, especially with respect to state governments' decisions around whether to expand Medicaid under the Affordable Care Act. Some Republican states' decisions to reject

38. Ana Ley, “Portsmouth Council Members May Have Broken Law by Asking for Charges in Confederate Monument Case,” *Virginian-Pilot*, September 10, 2020, <https://www.pilotonline.com/government/local/vp-nw-greene-moody-psimas-emails-20200910-w3ulihstrdrcljvg464tritbi-story.html?outputType=amp>.

39. Ana Ley and Gary A. Harki, “A Powerful Black Leader. White Opposition. Criminal Charges. An Old Pattern Continues in Portsmouth,” *Virginian-Pilot*, August 22, 2020, <https://www.pilotonline.com/government/local/vp-nw-portsmouth-lucas-history-20200822-theoupptlfh4pomdqhnc3loxnu-story.html>.

40. Ley, “Portsmouth Council Members May Have Broken Law.”

41. Amnesty International, “USA: The World Is Watching,” <https://www.amnestyusa.org/wp-content/uploads/2020/07/WorldisWatchingFullReport080220.pdf>.

free federal money to expand Medicaid have resulted in untold health and economic strain for low-income families—and tens of thousands of preventable deaths.

On the other hand, while criminal justice policy in the states has also become increasingly important to the lives of Americans, it has been *non*-polarized: both blue and red states have ramped up racially authoritarian policing and massively expanded their prison populations. Overall, health policy and criminal justice are substantively important and illustrative cases in which major socioeconomic outcomes are polarized to the extent that relevant *policies* are polarized. They are also areas in which state governments have taken on a greater role over the past generation within American federalism.

But 2020 showed signs that criminal justice policy in the states will increasingly resemble health policy in the 2020s. The Black Lives Matter protests following the killing of George Floyd pressured state and local officials to make their actions match their words on issues of racial justice. And though we shouldn't overstate their significance, some state governments—mostly those controlled by Democrats—responded with policy reforms. The Democratic governor and legislature of Virginia passed a law banning no-knock warrants. Colorado and New York banned police chokeholds. Minnesota and other states established new police review boards. These policing reforms are small compared to the scale of the problem of institutional racism in American criminal justice, just as states' expansion of Medicaid is an incomplete solution for American health care. But they have the potential to make meaningful progress.

State Resurgence

There are strong historical and theoretical reasons to expect state governments to be marginal players in American policymaking. Compared to the federal government, states face greater threat of exit from business and wealthy residents. Their legislatures are poorer in terms of the time, money, and information required to change policy. Major interstate differences in policy, such as the legality of racial segregation or gender discrimination in employment, have been washed away by landmark federal policies. Yet this minimalist characterization of states has grown antiquated. Over the past half century, and especially the last two decades, state governments have grown much more important and powerful than in the generation prior. As Bulman-Pozen (2018) describes, “The

state side of . . . policymaking has become increasingly important as polarization has sidelined Congress.”

While the federal government grew more gridlocked, states implemented major policies that shape the lives of their residents. Federal laws from the 1930s through the 1970s decreased interstate variation in all of the policy issue areas described in this chapter. Since 1970, in contrast, interstate variation increased as some states implemented restrictions on guns, abortion, labor unions, welfare, and voter eligibility, while others loosened restrictions. Moreover, some of the most significant recent federal policies have served to increase interstate variation rather than decrease it. In addition to welfare devolution in 1996 (Soss et al. 2001), the Supreme Court ruling in *National Federation of Independent Businesses (NFIB) v. Sebelius* (2012) gave states great discretion in the implementation of the Affordable Care Act, and the choice of whether to expand Medicaid and create a state-run health insurance marketplace (Beland, Rocco, and Waddan 2016). There are notable exceptions where Congress and the federal courts have decreased variation in state law, however. In a famous example of “coercive federalism,” the National Minimum Legal Drinking Age Act of 1984 threatened to withhold federal highway grants from states that did not increase their drinking age to twenty-one. The area of LGBT rights is also prominent. *Lawrence v. Texas* (2003) invalidated state sodomy bans. Though not included in this chapter’s analysis because it occurred after 2014, the *Obergefell v. Hodges* (2015) case legalized same-sex marriage by invalidating state marriage bans.

The upward trend in interstate policy variation is not inevitable, however. In 2017, the federal government came under unified Republican control, and that unified federal government could have acted aggressively against state policies it opposed. However, aside from a momentous tax cut skewed toward the very wealthy, the unified Republican government of 2017 and 2018 failed to pass major national policies. Still, it remains to be seen whether a federal government under the control of one party shifts policymaking away from the states and back toward the national level.

The resurgence of the state level within American federalism prompts new questions about the quality of democracy at the state level. As legal scholar David Schleicher (2018) writes, “any justification for federalism in a democracy—whether it is the greater fit between preferences and policies, sorting, laboratories of democracy, or protection of local identities—will rely heavily on state elections working to create representative, accountable, and

locally-differentiated politics” (see also Schleicher 2016). In the coming chapters, I address such questions. Who is setting policy agendas in state governments? How healthy is American democracy at the state level? The next two chapters suggest that, rather than a sea change in public opinion, the major policy changes of the era of state resurgence are the result of increasingly coordinated national networks of activists and organizations that make up the modern Democratic and Republican parties.